

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2106

By: Osburn

AS INTRODUCED

An Act relating to elections; amending 26 O.S. 2021, Section 3-101, as amended by Section 2, Chapter 329, O.S.L. 2023 (26 O.S. Supp. 2024, Section 3-101), which relates to dates of elections held by political subdivisions; modifying dates upon which certain elections may be held; updating statutory reference; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 3-101, as amended by Section 2, Chapter 329, O.S.L. 2023 (26 O.S. Supp. 2024, Section 3-101), is amended to read as follows:

Section 3-101. A. No election required to be conducted by any county election board shall be scheduled for a day other than Tuesday.

B. Except as otherwise provided by law, no regular or special election ~~to fill an elective office~~ shall be held by any county, school district, technology center school district, municipality, fire protection district or other political subdivision authorized to call elections except as follows:

1        1. The ~~second~~ first Tuesday of ~~February~~ March in any year;

2        2. The ~~first Tuesday of April in any year~~ third Tuesday in  
3 June;

4        3. The ~~date of any regularly scheduled statewide state or~~  
5 ~~federal election in an even-numbered year~~ fourth Tuesday in August;  
6 and

7        4. The ~~second~~ first Tuesday ~~of September in an odd-numbered~~  
8 ~~year~~;

9        5. ~~The second Tuesday of November in an odd-numbered year; and~~

10       6. ~~The second Tuesday of June of an odd-numbered year for a~~  
11 ~~special election to fill a vacancy~~ after the first Monday in  
12 November.

13       C. Except as otherwise provided by law ~~or by Section 1 of this~~  
14 ~~act, no~~ and with the declaration of an emergency by the Governor  
15 permitting a special election, an election ~~for any purpose other~~  
16 ~~than~~ to fill a vacancy in an elective office ~~shall~~ may be held by  
17 any county, school district, technology center school district,  
18 municipality, fire protection district or other political  
19 subdivision authorized to call elections ~~except~~ on:

20       1. The second Tuesday of January, February, May, June, July,  
21 August, September, October and November and the first Tuesday in  
22 March and April in odd-numbered years; provided, a municipality with  
23 a population in excess of two hundred fifty thousand (250,000)  
24 persons, according to the most recent Federal Decennial Census, may

1 also hold an election on the second Tuesday of December in odd-  
2 numbered years; and

3 2. The second Tuesday of January and February, the first  
4 Tuesday in March and April, the third Tuesday in June, the fourth  
5 Tuesday in August, and the first Tuesday after the first Monday in  
6 November of any even-numbered year.

7 D. In the event that a regular or special election date occurs  
8 on an official state holiday, the election shall be scheduled for  
9 the next following Tuesday. In the event that any day of a  
10 candidate filing period occurs on a Saturday, Sunday or any official  
11 state holiday, that day of the filing period shall be scheduled for  
12 the next business day.

13 E. Notwithstanding any other provision of law or any provision  
14 of a municipal charter, any municipality, school district,  
15 technology center district, county, rural fire protection district,  
16 or any other entity seeking to hold a regular or special election to  
17 be conducted by a county election board on the same date as a  
18 regular or special federal or state election, shall file the  
19 resolution calling for the election with the county election board  
20 secretary no later than seventy-five (75) days prior to the election  
21 date. A candidate filing period of three (3) days, if so required  
22 by the resolution, shall begin no later than ten (10) days following  
23 the deadline to file the resolution with the secretary of the county  
24 election board; provided, the filing period for such municipal

1 office may be scheduled on the same dates as the filing period for  
2 state or federal office to be filled at such election.

3 F. Any school district, technology center district,  
4 municipality, including any municipality governed by charter, rural  
5 fire protection district or any other entity seeking to hold a  
6 special election for the purpose of filling a vacancy shall schedule  
7 a candidate filing period of three (3) days to begin not more than  
8 twenty (20) days following the date the resolution calling the  
9 election is required to be filed with the secretary of the county  
10 election board.

11 SECTION 2. This act shall become effective November 1, 2025.  
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